SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Civil) No. 880 of 2017 **CNR: SCIN010008802017**

Date: 15 February, 2024 *Citation: (2024) 5 SCC 1*

CORAM: Hon'ble D.Y. Chandrachud, C.J., Sanjiv Khanna, B.R. Gavai, J.B. Pardiwala,

Petitioner: Association for Democratic Reforms (ADR) & Another

- VERSUS -

Respondent: Union of India & Ministry of Finance

DOMAIN: ELECTORAL LAW & RIGHT TO INFORMATION **STATUS: Good Law (5-Judge Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Information about funding to political parties is essential for a voter to exercise their freedom to vote in an effective manner. The Electoral Bond Scheme infringes the right to information under Article 19(1)(a) and does not satisfy the proportionality standard.

STATUTES APPLIED: Article 19(1)(a), Section 29C RPA, Section 182 Companies Act

DISPOSITION: ELECTORAL BONDS SCHEME DECLARED UNCONSTITUTIONAL AND STRUCK DOWN

EXECUTIVE RATIO SUMMARY:

Unanimous five-judge Constitution Bench struck down the Electoral Bond Scheme as unconstitutional, holding that anonymous corporate donations violate the voters' fundamental right to information under Article 19(1)(a).

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